

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Jamal Khan Mandokhail
Justice Muhammad Shafi Siddiqui

Direct Civil Appeal No. 02-K of 2023

(On appeal from the order of the High Court of Sindh, Circuit Court, Hyderabad dated 23.12.2022 passed in R.A. No. 70 of 2005)

Abdullah and others ...Appellant(s)

VERSUS

Waryam and others ...Respondent(s)

For the Appellant(s) : Mr. M. Ashraf Soomro, ASC

Ms. Abida Parveen, AOR

Respondent No.1,2,3,5 : Mr. Noor Ahmed Memon, ASC/AOR

Respondents 8-11 Mr. Sibten Mehmood, Addl. AG

Respondents 4,6 Nemo

Date of Hearing : 26.12.2025

O R D E R

Jamal Khan Mandokhail, J.- Facts in brief are that the appellants filed a suit for declaration and permanent injunction against the respondents in the court of Senior Civil Judge, Mithi (**Trial Court**). The private respondents contested the suit on legal as well as factual grounds. It was mainly contended that the matter has already been decided by the revenue hierarchy, therefore, the suit of the appellants against the order of the revenue hierarchy was not maintainable. The suit was dismissed by the Trial Court. The appellants challenged the same before the Appellate Court, which allowed the appeal and set aside the judgment and decree of the Trial Court. The respondents feeling aggrieved preferred a revision application before the High Court of Sindh, Circuit Court, Hyderabad, which was allowed, setting aside the judgment and decree of the Appellate Court and

upholding that of the Trial Court, in result whereof, the suit was dismissed by means of the impugned order, hence, the instant direct appeal.

2. The learned counsel for the appellants states that though earlier the petitioners had challenged the mutation of the disputed property before the revenue hierarchy, but that does not take away the jurisdiction of the civil court. He states that section 172 of the West Pakistan Land Revenue Act, 1967 (**‘Act of 1967’**) bars the jurisdiction of civil court in certain circumstances, which does not include the claim of a party with regard to his right, title or interest. Besides, the learned counsel adds that the question of fraud alleged by an aggrieved party requires evidence to prove, which exercise can only be done by a civil court, therefore, there is no findings of the revenue forum with regard to the factum of fraud. He states that in the given circumstances, the civil court having the power to decide the entitlement of a rightful owner and to declare any order of the revenue hierarchy void, was rightly approached. He contends that the learned High Court has failed to appreciate this legal aspect of the case and has reached a wrong conclusion.

3. The learned counsel for the respondents opposed the contention and states that the decision of the revenue authorities was against the appellants, but they did not challenge the same, which attained finality, therefore, the appellants are estopped to agitate their claim again. The learned counsel further states that the suit filed by the appellants was otherwise not maintainable in view of bar contained in section 172 of the Act of 1967.

4. Arguments heard and have perused the record. The contents of the plaint reveal that the appellants are claiming to be owners of the property through a registered sale deed. It is

alleged that the respondents with connivance of the revenue authorities, fraudulently transferred the property of the appellants in their name without adopting the procedure provided by the Act of 1967, which is an illegality. There is no denial of the fact that the mutation in question was once challenged before the revenue hierarchy by the appellants on the ground that it is a result of fraud and misappropriation. The revenue hierarchy being a quasi-judicial forum has limited jurisdiction of rectification, specifically, regarding record of rights, periodic record or correction of entries in the register of mutations. Their decisions are administrative and tentative in nature, which neither determine the title of the parties nor resolve the factum of fraud. However, when an aggrieved person challenges the title or validity of the record or mutation, on the plea of fraud or misrepresentation, such controversy requires evidence to prove, which is not within the domain of revenue authorities. For such purpose, the civil court has the ultimate jurisdiction by virtue of section 9 of the Code of Civil Procedure ('CPC'). Section 172 of the Act of 1968 does not debar the civil court from adjudicating on fundamental question of ownership and legality of record or mutation assailed particularly on the ground of fraud. The decision of the civil court regarding determination of question of title and factum of fraud in the record of rights¹ is therefore, binding upon the revenue hierarchy. The jurisdiction of civil courts is barred only in respect of the matter specifically provided for in section 172 of the Act of 1967².

¹ 2008 SCMR 1021.

² 1974 SCMR 356; 2003 SCMR 1241.

5. The subject matter of the suit in hand and the cause of action disclosed in the plaint do not fall within the ambit of section 172 of the Act of 1967, therefore, the suit was not barred by the said law. The High Court while making a reference to section 172 of the Act of 1968 has wrongly dismissed the suit of the appellant. In such view of the matter, the findings of the High Court suffers from misappreciation of the relevant law, hence came to a wrong conclusion, therefore, the impugned order and decree are not sustainable.

Thus, in view of the above, the appeal is allowed. The impugned order of the High Court dated 23.12.2022 is set aside. The suit filed by the appellants is deemed to be pending before the Civil Court, which after providing opportunity of hearing to all concerned, should proceed with the matter expeditiously and decide the same, strictly in accordance with law and on its own merits. The parties are under litigation since long period of time, the Trial Court should take all necessary steps to conclude the trial as early as possible. No unnecessary adjournments shall be granted to the parties and their counsels.

Judge

Judge

Karachi
26.12.2025
K.Anees & Saniya Diyar, LC/-
APPROVED FOR REPORTING